

REFERRAL PARTNER AGREEMENT

REDLINE COMPARISON: Changes from original highlighted in red

Red text = new/changed language in the modified version

~~Red strikethrough~~ = original language that was removed

Date: [Date]

Company: OskarOS Software GmbH, Thiestr. 64, 58456 Witten, Germany ("Company")

Partner: [Partner Name(s)], [Partner Address] ("Partner")

1. SCOPE

This Agreement shall have an initial term of 12 months from the Date above. To maximize the mutual benefit of the referral program, Partner agrees to integrate the "Oskar" software service as a featured resource with commercially reasonable prominence, including clear visual or verbal reference and an accessible link where feasible for the duration of the term. Company grants Partner a non-exclusive, non-transferable license to use Company's trademarks and approved marketing materials solely for the purposes of this Agreement, revocable upon termination of this Agreement or material breach. Company retains all intellectual property, trademarks, and customer relationships.

2. COMMISSIONS

Term	Detail
Rate	25% of Net Revenue
Net Revenue	Gross subscription fees received and retained, less VAT/sales tax, refunds, chargebacks, and payment processing fees
Referral Window	24 months from the date of video publication
Attribution	Last-click, 90-day window. Company's tracking system is the sole binding basis absent demonstrable material technical error Dedicated referral link or referral code, 24-month window from click or code entry. Company's tracking system is the primary basis for attribution; material discrepancies raised by Partner shall be resolved jointly in good faith.
Payout Duration	Maximum of 36 months per customer, starting from their first payment 36 months per customer, starting from their first payment. For the avoidance of doubt, if a customer upgrades their plan during the Payout Duration, the commission rate applies to the upgraded plan.
Reporting	Quarterly. Disputes must be raised within 30 days; undisputed amounts are deemed accepted Company shall provide Partner with continuous access to a reporting dashboard showing unique clicks (deduplicated), attributed signups, attributed paying customers, net revenue (post refunds/chargebacks), and commissions accrued and paid. Settlement is quarterly. Disputes must be raised within 30 days of the quarterly report; undisputed amounts are deemed accepted.

3. PAYMENT TERMS

~~Commissions are calculated quarterly and are due Net 45 days after the end of the quarter.~~

Commissions are calculated based on calendar quarters ending 31 March, 30 June, 30 September, and 31 December. Payment is due Net-30 days after the end of each quarter. If payment is not received within 5 days of the due date, a late fee of EUR 50 shall apply to the outstanding balance.

Payments shall be made in EUR via SEPA or Wise. Company covers outbound transfer fees; all intermediary/receiving bank fees and currency conversion costs are the Partner's responsibility.

Partner shall provide accurate payment details and, where required by law, a proper invoice

(including applicable VAT/GST) before payment is issued. ~~Prior commissions on refunded or charged back customers will be netted against future payments; if none are due, Partner shall remit overpayments within 30 days of written notice.~~

Commissions on customers who receive a refund or chargeback within 60 days of their initial payment will be netted against future payments. Refunds or chargebacks occurring after 60 days shall not affect previously paid commissions.

4. PARTNER OBLIGATIONS

Partner warrants compliance with all applicable advertising-disclosure laws (including German UWG/TMG, FTC guidelines, and NZ ASA Codes). Partner shall not: (a) bid on Company brand terms in paid search; (b) make misleading or unauthorized claims; (c) send unsolicited communications (spam); or (d) assign rights hereunder without written consent. Non-compliant content must be corrected within 5 business days of notice.

5. TAX & RELATIONSHIP

Partner is an independent contractor and is solely responsible for all taxes and social contributions arising from payments received. Company shall not withhold taxes unless legally required. This agreement does not create a partnership, employment, or joint venture.

6. TERMINATION

- For Convenience: Either party may terminate on 30 days' written notice.
- Post-Termination: Commissions on previously attributed customers continue for the remaining Payout Duration (36 months per customer).
- For Cause: Company may terminate immediately for breach of Section 4, fraud, or uncured material breach (10-day cure period). In such cases, unpaid commissions may be withheld to the extent directly ~~related to the breach, fraud, or misconduct.~~ and demonstrably related to the specific breach. Any withheld amounts not substantiated in writing within 60 days of termination shall be released to Partner.
- Upon termination, the trademark license shall continue solely with respect to content published prior to the date of termination. Revocation applies only to content created or published after termination.

7. LIABILITY

~~Partner shall indemnify and hold harmless Company against all claims, damages, liabilities, and expenses arising from Partner's content, conduct, or breach of this Agreement. Company's aggregate liability per claim under this Agreement shall be capped at the total commissions paid to Partner in the twelve (12) months preceding the event giving rise to the claim. Neither party shall be liable for any indirect, incidental, special, or consequential damages, including loss of profit, loss of data, or business interruption, even if advised of the possibility of such damages.~~

Each party shall indemnify and hold harmless the other party against all claims, damages, liabilities, and reasonable expenses arising from the indemnifying party's content, products, services, conduct, or breach of this Agreement. For the avoidance of doubt, Company shall indemnify Partner against claims arising from the operation, performance, or failure of the Company's software platform, including but not limited to data breaches, service outages, billing errors, and product liability claims brought by referred customers.

Note: Liability cap and consequential damages exclusion from original have been removed.

8. FORCE MAJEURE

Neither party shall be liable for delay or failure in performance (other than payment obligations) due to events beyond its reasonable control, including but not limited to acts of God, governmental actions, war, terrorism, labor disputes, platform outages, internet or hosting failures, or payment service provider failures. Performance shall be suspended for the duration of such event.

9. CONFIDENTIALITY

Each party shall keep confidential all non-public commercial, financial, and technical information disclosed in connection with this Agreement, including the existence and terms of this Agreement, commission structures, and reporting data. This confidentiality obligation shall survive termination for two (2) years, excluding information that is or becomes publicly available without breach of this Agreement, was lawfully known by the receiving party prior to disclosure, or must be disclosed pursuant to law, regulation, or a binding court or authority order. ~~Each party may disclose confidential information to its professional legal, financial, and tax advisors who are bound by professional duties of confidentiality. Notwithstanding the above, Partner may publicly reference the existence of the commercial relationship with Company and may disclose aggregate performance metrics for the purpose of advertising disclosure compliance and establishing credibility with future partners, provided no specific financial terms of this Agreement are disclosed.~~

10. GENERAL

Governed by German law; CISG excluded. Exclusive jurisdiction: Bochum, Germany. This is the entire agreement. Amendments require written signatures. If any provision is unenforceable, the remainder remains in effect. ~~Before initiating legal proceedings, the parties shall attempt to resolve any dispute arising from this Agreement through good-faith negotiation within 30 days of written notice of the dispute.~~